

**Present:**  
**Mr. Justice S M Kuddus Zaman**  
**And**  
**Mr. Justice Md. Ali Reza**

**Criminal Appeal No.3839 of 2023**

Md. Rofikuzzaman Ripon

.....Accused-Appellant

-Versus-

The State and another

.... Respondents

Mr. Mainul Islam, Advocate

.... For the accused-appellant

Mr. Sujit Chatterjee, Deputy Attorney General

... For the State.

Mr. Md. Rois Uddin, learned Advocate

.... For the complainant-  
respondent.2.

**Heard and Judgment on:09.01.2024.**

**S M Kuddus Zaman, J:**

On an appeal under Section 28 of Nari-O-Shishu Nirjatan Daman  
Ain, 2000 (as amended in 2003).

Mr. Mainul Islam, learned Advocate for the appellant submits that  
the accused-appellant was granted bail ad-interim bail by this Court on  
17.05.2023 and there is no allegation of misuse of the privilege of above  
bail against the accused-appellant.

We have scrutinized the case record and considered the facts and  
circumstances of the case and found substance in above submissions of  
the learned Advocate for the accused-appellant.

Accordingly, the appeal is allowed and the ad-interim bail granted to the accused-appellant Md. Rofikuzzaman Ripon is confirmed till conclusion of trial of above case.

However, the Trial Court is at liberty to cancel the bail of Md. Rofikuzzaman Ripon if he misuses the privilege of bail.

Communicate this judgment and order to the Court concerned at once.

**Md. Ali Reza, J:**

I agree.

MD. MASUDUR RAHMAN  
BENCH OFFICER